

IN THE OFFICE OF ADMINISTRATIVE
STATE OF WYOMING

IN THE MATTER OF THE PROPOSED
SUSPENSION OR REVOCATION OF THE
VARIOUS LICENSES HELD BY
JANE WARREN:

STATE OF WYOMING ex rel.
MENTAL HEALTH PROFESSIONS
LICENSING BOARD,

Petitioner,

v.

JANE WARREN,

Respondent-Licensee.

OAH DOCKET NO. 97-151-078
AGENCY NO. 96-09

ORDER RECOMMENDING ACCEPTANCE OF SETTLEMENT AND VACATING HEARING

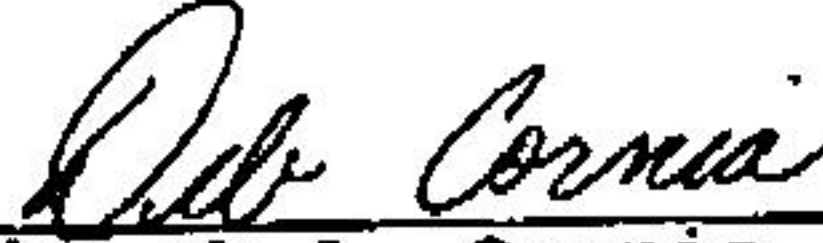
THIS MATTER came before the Office of Administrative Hearings (Office) upon the stipulated settlement signed by the Respondent-Licensee on June 18, 1997. The Office has reviewed the settlement and finds the terms appropriate.

IT IS THEREFORE RECOMMENDED that this case be resolved consistent with the terms of the settlement which is incorporated by this reference.

IT IS THEREFORE ORDERED that:

1. The July 11, 1997 hearing is vacated.
2. This case is returned to the Mental Health Professions Licensing Board.

DONE this 26th day of June, 1997.



Deborah A. Cornia, Hearing Examiner
State of Wyoming
OFFICE OF ADMINISTRATIVE HEARINGS
Cheyenne, Wyoming 82002-0270
(307)777-6660

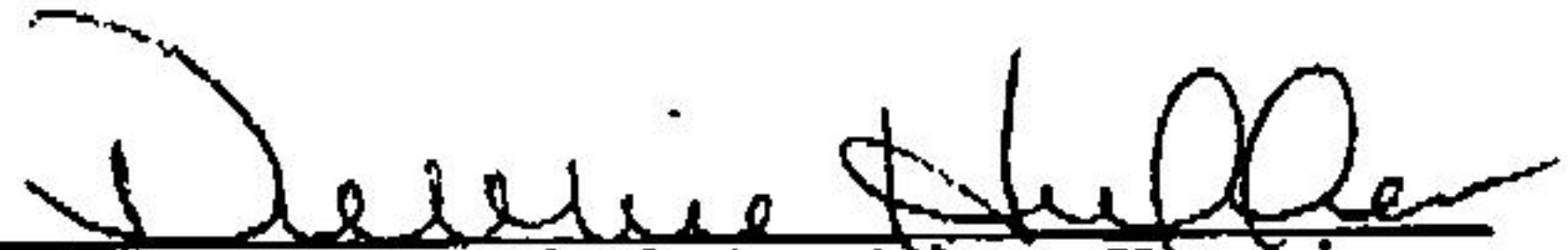
CERTIFICATE OF SERVICE

I hereby certify that the original of the foregoing document was served upon the Wyoming Mental Health Professions Licensing Board and a true and correct copy was served upon the parties by mailing same, postage prepaid, on the 26th day of June, 1997, addressed to the following:

Wyoming Mental Health Professions Licensing Board (ORIGINAL)
ATTN: Veronica Skoranski
First Bank Building, Mezzanine
2020 Carey Avenue
Cheyenne, Wyoming 82002

Susan L. Sellers - Attorney for Petitioner
Assistant Attorney General
123 Capitol Building
Cheyenne, Wyoming 82002

Jane Warren - Respondent-Licensee
Southeast Wyoming Mental Health Center



Office of Administrative Hearings

**BEFORE THE WYOMING MENTAL HEALTH
PROFESSIONS LICENSING BOARD**

IN THE DISCIPLINARY MATTER OF)
JANE WARREN, PH.D., LPC, LMFT,) Docket No. 96-09
LAT.)

ORDER ACCEPTING SETTLEMENT AGREEMENT

THIS MATTER comes before the Wyoming Mental Health Professions Licensing Board (Board) pursuant to a Settlement Agreement and Stipulation by and between the Board and Jane Warren (Warren), PH.D., LPC, LMFT and LAT dated 6/20/97. The Board hereby adopts and incorporates of the aforementioned Settlement Agreement into this order and specifically finds:

1. Jane Warren is a Licensed Professional Counselor (LPC), a Licensed Marriage and Family Therapist (LMFT) and a Licensed Addictions Therapist (LAT) in Wyoming and holds license numbers, LPC-194, LMFT-028 and LAT-031, respectively, as issued by the Board.
2. On or about August of 1994, Warren established a professional relationship with a client, G.S., that lasted through October of 1994. In May of 1995 through October of 1995, Warren engaged in a dual relationship with G.S. that involved sexual intimacies. By having a dual relationship, Warren acted violated Wyo. STAT. § 33-38-110(c)(iii) and Chapter 7, Section 2(c)(xiii) of the Board's Rules and Regulations.
3. Upon full execution of this Order, Warren waives her rights to Notice and Hearing as provided under the Wyoming Administrative Procedure Act, Wyo. STAT. § 16-3-101 et. seq. and Wyo. STAT. § 33-38-105(d).
4. Wyo. STAT. § 33-38-105(d) authorizes the Board to conduct hearings on complaints concerning violations of the Act and rules associated with the Act. Wyo. STAT. § 33-38-110(c) and the Board's Rules and Regulations, Chapter 8, Section 1 authorize the Board to suspend or revoke the license of any individual violating the provisions of Wyo. STAT. § 33-38-110(c).
6. Due and proper notice of this matter has been afforded to Warren. The Board has jurisdiction in this matter and over Warren pursuant to Wyo. STAT. § 33-38-105, the Board's Rules and Regulations and the Wyoming Administrative Procedure Act, Wyo. STAT. § 16-3-101 et. seq.
7. Warren has violated Wyo. STAT. § 33-38-110(c)(iii) and Chapter 7, Section 2(c)(xiii).
8. The foregoing violation of Wyo. STAT. § 33-38-110(c)(iii) and Chapter 8, Sections 1 and 2

is sufficient grounds for revoking or suspending Warren's LPC, LMFT, and LAT licenses pursuant to WYO. STAT. § 33-38-110(c).

IT IS THEREFORE HEREBY ordered:

9. Warren's licenses as a licensed professional counselor, licensed marriage and family therapist and licensed addictions therapist shall be immediately suspended for discipline, for violation of the provisions of WYO. STAT. § 33-38-110(c)(iii) and Board Rules, Chapter 7, Section 2(c)(xiii). Upon execution of this document by all parties, Warren shall immediately send her wall licenses and pocket cards for all disciplines to the Board.
10. Upon receipt of Warren's licenses, the Board shall immediately issue Warren probationary wall licenses and probationary pocket cards. The probationary licenses shall be effective until June 20, 1999.
11. During the term of the probationary license, Warren shall adhere to all continuing education requirements set forth in Chapter 6 of the Board's Rules.
12. Ninety days prior to the termination of the probationary license period, Warren may apply for reinstatement of her licenses according to Chapter 10 of the Board's Rules. Upon application for reinstatement in compliance with Chapter 10, the Board shall reinstate the licenses if the Board finds Warren has not violated WYO. STAT. § 33-38-110(c), and Warren has met the conditions set forth in paragraph 13 of this Agreement.
13. During the term of the probationary license as set forth in paragraph 10, Warren shall complete the following:
 - (A) Preparation of a lecture on boundaries of professional relationships or the wounded healer and presentation of the aforementioned lecture at the 1997 or 1998 Wyoming Counselors Association's annual meeting; and
 - (B) Two (2) semester credits, (30) hours, of course work regarding Ethics for Counselors or Ethics for the Helping Profession. At Warren's request, Warren may submit a course topic to the Board for review, and the Board will determine whether the course meets the requisite criteria prior to Warren attending the course.
 - (C) Practice under clinical supervision. The requisite supervision shall be established through a supervision contract approved by the Board, occur at least once a week and emphasize professional standards and ethical behavior.
14. The disciplinary taken against Warren shall become public record upon its full execution.

15. The Board shall retain continuing jurisdiction in this matter to take further action as may be necessary to conclude this matter.

FOR THE WYOMING MENTAL HEALTH PROFESSIONS LICENSING BOARD:

DATED this 20th day of June, 1997.

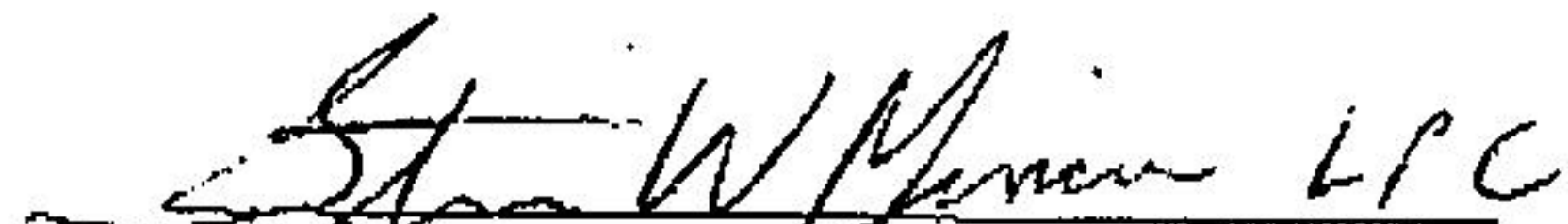

Glenn T. Garcia, MSW, ACSW, LCSW


Gina Pearson


Beth Griswold, ED.D., LMFT


Garth Shanklin, M.ED., LAT, LPC


Lela D. Ladd


Steven W. Mincer, M.A., LPC